



File No.: EXP202207494

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 31, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against SOLAR PROGRESS, S.L. with NIF B76821586 (hereinafter, SOLAR PROGRESS), through the Agreement that is transcribed:

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 20, 2022. The complaint is directed against SOLAR PROGRESS, S.L. with NIF B76821586 (hereinafter, SOLAR PROGRESS). The reasons for the complaint are as follows: The complainant worked for SOLAR PROGRESS until ***DATE.1. According to the complainant, the commercial director of SOLAR PROGRESS displayed, on the date of entry of the complaint, in the WhatsApp profile of his company phone, a screenshot of an email prepared by the complainant for professional purposes. The published document contains the name and surname of the complainant associated with a question they posed to resolve a labor issue. Along with the complaint, a screenshot is provided showing the published information and a business card of the commercial director of SOLAR PROGRESS.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to SOLAR PROGRESS for analysis and for the Agency to be informed within one month of the actions taken to comply with the requirements set forth in data protection regulations.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/9

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not acknowledged by the responsible party.

The forwarding was reiterated on July 27, 2022, by certified postal mail, which was delivered on August 11, 2022, according to the acknowledgment of receipt included in the file.

The forwarding was reiterated again, in accordance with the rules established in the LPACAP, and was also not acknowledged by SOLAR PROGRESS.

No response has been received to this forwarding letter.

THIRD: On August 20, 2022, in accordance with Article 65.5 of the LOPDGDD, the complaint filed by the complainant is deemed to have been admitted for processing, as more than three months have passed since the entry of the complaint.

FOURTH: On December 15, 2022, and March 29, 2023, the following information was obtained through the WhatsApp number ***PHONE.1, which is included in the diligence with the same date:

- Information that can be seen when opening the contact of the number ***PHONE.1 belonging to SOLAR PROGRESS

- email with the complainant's data that can be seen when enlarging the image of the contact of the mentioned number on WhatsApp.

From this information, it is concluded that the WhatsApp profile of SOLAR PROGRESS has no visibility restrictions on the profile picture.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/9

As aggravating factors:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages suffered (section a): for having disseminated the personal data of the complainant in the profile picture published on their WhatsApp, which affected the complainant from at least May 20, 2022 (date of the complaint) to March 29, 2023, according to the diligence incorporated into the file.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for an initial fine of €5,000 (five thousand euros).

VI

Imposition of measures

If the infringement is confirmed, it may be agreed to impose on the responsible party that, within 1 day, they proceed to remove from the WhatsApp profile picture all information related to the personal data of the complainant, without prejudice to others that may arise from the instruction of the procedure, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the opening of a further administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against SOLAR PROGRESS, S.L., with NIF B76821586, for the alleged infringement of Article 5.1.f), classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would

be €5,000, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to SOLAR PROGRESS, S.L., with NIF B76821586, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €4,000, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €4,000, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative to the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €3,000.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative channel against the sanction. In the event that they choose to proceed with the voluntary payment of either of the amounts indicated above €4,000 or €3,000, they must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es